

## **Tentative Rulings**

July 20, 2026

Department S-17

Judge Joseph Ortiz

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Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or [www.courtcall.com](http://www.courtcall.com)), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

**ATTENTION:** Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

**UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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17. *Robertson v. City of Rialto, et al*, Case No. CIVSB2325118 [AMENDED AFTER ORAL ARGS]  
Plaintiff's Motion to Compel Deposition of Mark Kling  
Plaintiff's Motion to Compel Deposition of Ed Scott  
7/20/26, 9:00 a.m., Dept. S-17

### ***Tentative Rulings***

#### **As to the Kling Motion:**

*Objections:* The Court would **SUSTAIN** the City's objections to RFP 1-3 on attorney-client privilege and work product but order the City to provide a privilege log. The Court would otherwise **OVERRULE** the remaining objections.

*The Motion:* The Court would **GRANT** the motion. To the extent the parties have not proceeded with the deposition already, the parties shall meet and confer on an appropriate date to occur within the next twenty days. The Court would find substantial justification to **DENY** Plaintiff's requested sanctions.

**As to the Scott Motion:** The Court would **DENY**.

### ***Case Summary***

In essence, this is an invasion of privacy case. Plaintiff, who is the mayor of Rialto, alleges that Defendant City and its Police Department has permitted at least ten unauthorized California Law Enforcement Telecommunications System (CLETS)<sup>1</sup> searches involving her from 2015 to 2020. She alleges that the unauthorized CLETS searches were done to determine her residency as an elected official and for other unauthorized purposes. Thus, she filed suit against the City on October 6, 2023, alleging causes of action for (1) intrusion into private affairs; (2) violation of the Comprehensive Computer Data and Access Fraud Act; (3) negligent supervision; (4) violation of the Information Practices Act; (5) intentional infliction of emotional distress (IIED); (6) negligent infliction of emotional distress (NIED); and (7) violation of the Bane Civil Rights Act.

### ***Analysis***

Here, Plaintiff seeks to compel the depositions of (1) the Chief of Police Mark Kling and (2) Mayor Pro Tem Ed Scott. Defendants served objections to the at-issue deposition notices on March 18, 2026, by email. These motions followed.

*Chief Kling Deposition* – As a preliminary matter, the Court would **OVERRULE** Defendants' objections to Plaintiff's separate statement. Though unorthodox, examining the statement closely page-by-page reveals that Plaintiff *did* quote verbatim language of the notice, objections, and reasons a further response should be compelled. However, Plaintiff elected a

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<sup>1</sup>CLETS is a network used by law enforcement to access national databases such as FBI and DMV records, among others.

piecemeal fashion where, instead of cutting and pasting the entire paragraph of objections, she quoted each objection discretely. Nothing in the court rules appears to prohibit this practice; although it is very uncommon and not customary.

As to the whether to compel Chief Kling's deposition, it is clear that Defendants state that they "remain willing to meet and confer to schedule the deposition of Chief Kling on a mutually convenient date for the parties, counsel, and the deponent" depending on whether Plaintiff intends to take the deposition in person or remotely. (Hawkins Decl., Exh. F, Obj. 2 to Notice, 2:20-23.) As such, Defendants acknowledge they will produce Chief Kling for deposition. In their opposition, Defendants state Kling's deposition was scheduled for July 8, 2026. If Kling's deposition has already occurred, then Plaintiff's motion is moot, and the Court wonders why it was not taken off calendar. If it has not occurred, then it appears appropriate to grant Plaintiff's motion.

*Mayor Scott Deposition* – The apex doctrine provides that agency heads and other top government executives are not subject to deposition absent compelling reasons. (*Contractors' State License Bd. v. Superior Court* (2018) 23 Cal.App.5th 125, 131.) An exception to the rule will be made only when the party seeking the deposition makes two showings; (1) the government official has direct personal factual information pertaining to material issues in the action; and (2) the information to be gained from the deposition is not available through any other source. (*Id.*, at p. 132.)

Defendants, here, argue that Scott is currently serving as the City's mayor pro tem, which indisputably makes him a top government executive. (Lustig Dec., ¶13.) Defendants further explain that Scott does not have direct personal factual knowledge of CLETS inquiries made about Plaintiff Robertson because Scott's February 16, 2021, government claim made under penalty of perjury attests that: "I made a verbal complaint to Rialto Police Chief Mark Kling that I had been informed that a Confidential informant whistleblower, who is a current employee of the City of Rialto had been told by a current member of the Rialto Fire Department that he had been involved in investigating myself (Ed Scott a Rialto City Councilmember) to determine my residency and property I owned in Kernville California and other information related to my personal life and background." (Lustig Decl., ¶14 & Exh. A.)

As Defendants argue, this statement discloses that Scott does not have direct personal factual knowledge about CLETS searches being performed as to himself; instead, the information came from other sources and individuals. Defendants contend correctly that Scott's government claim statement discloses at least two levels of hearsay. Moreover, there is no statement in Scott's government claim that he had or was told any information whatsoever about CLETS searches related to Plaintiff Robertson. (Lustig Decl., Exh. A, Attachment to Complaint, p. 1.) Instead, Scott states the acts were unknown specifically to him and "Based on information I have received I believe that other members of the City Council may have had similar acts committed against them." (*Id.*, Attachment to Complaint, p. 2.) Such statements support

Defendants' arguments that Scott lacked direct personal factual knowledge about CLETS searches about him and other City Council members.

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18. *Marquez v. Look Cinemas II, LLC, et al*, Case No. CIVSB2428912  
Defendant Spirit Master Funding's Motion for Summary Judgment  
7/20/26, 9:00 a.m., Dept. S-17

### ***Tentative Ruling***

The Court would **GRANT**<sup>2</sup> this unopposed motion.

### ***Case Summary***

This is, essentially, a premises liability matter. Defendant Look ran the theater premises; Defendant Spirit owned the premises; and Defendant Morrison was the property manager. Plaintiff was lawfully on the property when she fell due to a purportedly hazardous and dangerous condition.

As such, on October 8, 2024, she filed suit alleging (1) negligence and (2) premises liability against all Defendants. On December 5, 2024, Defendant Spirit filed a Cross-Complaint against Look for (1) contractual indemnity; (2) equitable indemnity; (3) contribution; (4) breach of sub-contracts; and (5) declaratory relief. On April 4, 2024, an amended Cross Complaint was filed asserting the same causes but including a corrected caption. On July 1, 2025, Plaintiff filed a dismissal without prejudice as to Defendant Morrison.

Relevant here, Defendant Spirit filed a motion for summary judgment as to the Complaint on March 26, 2026. As of the date of this tentative decision's drafting, no opposition has been presented.

### ***Statement of Law***

Summary judgment is proper where there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) The analysis requires three steps: First, the court must identify the issues framed within the pleading. (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064-1065.) Second, it must determine whether the moving party has established facts sufficient to negate the claim and justify a judgment in movant's favor. (*Ibid.*) Third, and finally, when a summary judgment motion, as a prima facie matter, justifies a judgment, the court must determine whether the opposition demonstrates the existence of a triable issue of material

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<sup>2</sup> Materials Considered: Complaint, Answer; MSJ; Separate Statement of Undisputed Facts; Request for Judicial Notice; Campbell Declaration. Undisputed Material Facts: 1-7.

fact. (*Ibid.*) The court's sole function on a motion for summary judgment is issue finding, not issue determination. (See *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 926.)

### **Analysis**

*Unopposed Motion* – The failure of a party to oppose a motion for summary judgment is not a sufficient basis for granting the motion. A motion for summary judgment granted where moving party has not met its burden of showing that the action is without merit “would have to be reversed, even if the plaintiff failed to introduce a scintilla of evidence challenging that element.” (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468 [emphasis in original].)

*Undisputed Material Facts* – UMF, #1.) Plaintiff alleges that she slipped and fell on the ground material at the subject property. (UMF 1.) Spirit entered into a lease agreement with Look Cinemas II that became effective on May 11, 2021. (UMF 2.) The original term of the lease agreement between Spirit and Look Cinemas II was to expire on June 30, 2036. (UMF 3.) Section 3.1 of the Lease Agreement states in pertinent part: “Grant of Lease. Landlord hereby leases to Tenant and Tenant hereby leases from Landlord the Leased Premises in its “as is” condition . . . Tenant has physically inspected the Leased Premises and has examined title to the Leased Premises , as well as to the furniture, fixtures, or equipment . . . and has found all of the same satisfactory in all respects for all of Tenant’s purposes.” (UMF 4.) Section 4.5 of the Lease Agreement states in pertinent part:

Delivery. Tenant agrees to take possession of the Leased Premises whether or not any subtenants are in occupancy of all, or any portion of, the Leased Premises . . . Tenant’s . . . shall and may peaceably and quietly have, hold and enjoy the Leased Premises for the term aforesaid, without hindrance or molestation by the Landlord of any right to: (a) possess or occupy the Leased Premises or (b) enter or access the Leased Premises.

(UMF 5.) Section 7.1.1 of the Lease Agreement states in pertinent part:

Maintenance and Repairs/Alterations. Without in any way affecting any other provisions of this Lease, Tenant shall, at its sole cost and expense, be responsible for (a) keeping all exterior and interior portions of the Leased Premises, including but not limited to the building, structures and improvements erected on the Leased Premises in good order and repair, free from actual or constructive waste, including without limitation, the roof, walls, foundations, and the HVAC . . . Tenant waives any right to require Landlord to maintain, repair or rebuild the Leased Premises.

(UMF 6.) Spirit Master Funding X, LLC did not have actual knowledge of the ground material that Plaintiff claims that she slipped on, or any other potentially dangerous condition, at any time prior to the incident. (UMF 7.)

*Spirit's Arguments* – Here, Spirit moves for summary judgment on the basis that that both causes of action fail because Spirit did not owe a duty as to the ground material located within the theater that allegedly constituted a dangerous condition.

More specifically, Spirit asserts that the undisputed facts establish that Spirit owed no duty to Plaintiff as to the ground material that allegedly constituted a dangerous condition. Look Cinemas was in exclusive control of the property for nearly three years prior to Plaintiff's fall, with Spirit having no access to the property to know about the dangerous condition of the floor. Spirit did not have actual knowledge of the alleged dangerous condition prior to the subject accident. Spirit did not have the right or ability to correct the allegedly dangerous condition.

Generally speaking, *Garcia v. Holt* (2015) 242 Cal.App.4th 600, 604-605, asserts that public policy precludes landlord liability for a dangerous condition on the premises which came into existence after possession has passed to a tenant. (Citing *Uccello v. Laudenslayer* (29175) 44 Cal.App.3d 504, 510.) Here, nothing has been submitted showing that Spirit had notice of the dangerous condition of the floor, and Spirit has submitted uncontested evidence that the property was under its tenant's control. In other words, the lease had turned over possession to Look prior to all relevant events. Declarant Campbell also asserts that Spirit did not have actual knowledge of the ground material that Plaintiff claims she slipped on and did not have access to the property. Plaintiff has not responded. Look Cinemas has not responded. Thus, there are no facts offered to contradict Spirit's contention, and there appears to be no triable issue of material fact.

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